

14	Farmanfarmaian v. Pondfield International Limited 2023-01338835 Motion for Summary Judgment and or Adjudication	Cross-Defendant Nezam Farmanfarmaian's Motion for Summary Judgment is DENIED. Code of Civil Procedure section 437c(b)(4) expressly prohibits including new evidence in reply. It does not permit requesting permission to include new evidence in reply. Thus, Nezam's request to file new evidence in reply and request for judicial notice is denied. Even if the Court were to allow such evidence in, it does not change the Court's ruling on this Motion because the evidence does not support Nezam's claims. "The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. Rules of Court, rule 3.1113(b).) Nezam's Motion advances many arguments without any support from legal authorities. The Court has already had to caution Nezam regarding his responsibilities as a self-represented litigant when submitting his prior motion for summary judgment. The Court now cautions that submitting frivolous motions is a sanctionable act. <i>"A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay."</i> (Code Civ. Proc., § 128.5(a).) <u>Merits</u> The elements of a claim for breach of contract are "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (<i>D'Arrigo Bros. of California v. United Farmworkers of America</i> (2014) 224 Cal.App.4th 790, 800.) Nezam has failed to satisfy his burden of showing a complete defense to Ardalan's breach of contract claim or Ardalan cannot establish one or more of the essential elements to his breach of contract claim. A contract is not void or uncertain merely by failing to state a place of performance or the exact method of performance. (See <i>Hale v. Bohannon</i> (1952) 38 Cal.2d 458, 466 ["where no place of performance is expressly stipulated, it ought to be held performable in the place where the circumstances ... indicate that the parties expected or intended it to be
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	performed”].) Nezam was free to choose the exact place or method or repayment because the promissory note (the Note) and Deed of Assignment (the Deed) were silent as to those terms. As Ardalan suggests, Nezam could have simply mailed a check. The Deed provides the loan was “repayable on or before 10 May 2018 or on the date the Borrower receives inheritance from his parents. whichever of the two is the earliest to occur.” (Ex. A.) Thus, Nezam was still obligated to repay the loan within the Note was still past due upon signing the Deed and Nezam was on notice his obligation to repay was past due. Next, his performance was not reliant on the distribution of his inheritance. In his Motion, Nezam argues the first triggering event was his bankruptcy in 2016 and the other triggering event was May 10, 2018. Thus, both other triggering event occurred and receipt of his inheritance is immaterial. None of Nezam’s arguments support a finding that he was excused from performance, the contract was void or uncertain, or Ardalan cannot establish Nezam breached the contracts by failing to repay the loan. Thus, Nezam’s Motion is denied.
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